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Case Number: 22STCV06583 Hearing Date: September 8, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

CHRISTOPHER RASCON

vs.

THE COUNTY OF LOS ANGELES

Case No.: 22STCV06583

Hearing Date: September 8, 2026

Defendants' motion for summary judgment is DENIED. Defendants' motion for summary adjudication is similarly DENIED.

On 2/23/2022, Plaintiff Christopher Rascon (Plaintiff) filed suit against the County of Los Angeles. On 10/13/2022, Plaintiff filed a first amended complaint (FAC) alleging: (1) racial discrimination; (2) racial harassment; (3) age discrimination; (4) age harassment; (5) retaliation; (6) failure to prevent; (7) disability discrimination; and (8) discrimination based on medical condition.

On 6/15/2026, Defendants moved for summary judgment or, in the alternative, summary adjudication, of Plaintiff's FAC.

Discussion

Defendants argue that Plaintiff cannot establish his claims because: (1) as to the first, third, and fifth causes of action there is no evidence of discriminatory motive, there was no adverse employment action, Defendant had legitimate non-pretextual business reasons for any actions taken; (2) as to the second and fourth causes of action, the conduct was neither “severe” nor “pervasive,” it did not materially affect Plaintiff’s work environment, and the continuing violation doctrine does not apply; (3) as to the sixth cause of action, it is derivative of the remaining claims and thus fails; and (4) as to the seventh and eighth causes of action, there was no adverse employment action.

As to the first contention, Plaintiff’s claims for discrimination based on race/ethnicity and age and retaliation under the FEHA arise out of allegations that he was wrongfully denied promotion, or prevented from promoting, from his current position of Fire Captain to the position of Battalion Chief.

Defendant argues that Plaintiff cannot state a claim as a matter of law because it is undisputed that he never applied for a promotion to Battalion Chief and to state a claim for disparate treatment under the FEHA based on a failure to promote, a plaintiff must show that he or she applied to the position in question. (*Ibarbia v. Regents of Univ. of Cal.* (1987) 191 Cal.App.3d 1318, 1328-29 [affirming grant of summary judgment for employer where plaintiff-appellant failed to show that he applied for the job in question and thus failed to make a sufficient showing of disparate treatment under the FEHA; the court found purely speculative and unsupported by the evidence the plaintiff’s claim that the interview was merely a pretext and that the selection of a candidate had already taken place].

However, as even Defendant notes, there is a California state appellate court case which has recognized an exception to the rule that a FEHA plaintiff claiming wrongful failure to promote must ordinarily demonstrate that he or she actually applied for the position in question. (See *Abed v. Western Dental Services, Inc.* (2018) 23 Cal.App.5th 726.)

In *Abed*, which was a pregnancy discrimination case, the court reversed a summary judgment in favor of the employer where the plaintiff had presented evidence that she was intentionally and falsely told by the employer’s agent that no position was available, which caused the plaintiff not to apply and thereby forfeit the opportunity to promote. (*Id.*)

Defendant argues that the facts of *Abed* are distinguishable here, as Plaintiff here was never told a position did not exist, and *Abed* did not recognize a traditional futile gesture exception (“We disagree with the trial court that the survival of *Abed*’s FEHA claim depended on the futile-gesture doctrine. The claim is not that it would have been futile for *Abed* to apply (even if it might have been) so much as it is that *Western Dental* caused her not to apply by falsely telling her for discriminatory reasons that no position was available. This is a different, but also legitimate, reason for her not to have applied.”)

Still, while the *Abed* court relied on a different basis for excusing the application requirement, i.e., discriminatory deterrence where the employer’s own discriminatory misrepresentation causes the plaintiff not to apply, as opposed to futility, the Court notably did not foreclose the possibility of such a futility exception. Indeed, the *Abed* court noted that an employer can discourage potential applicants “more subtly ... by [its] consistent discriminatory treatment of actual applicants, by the manner in which [it] publicizes vacancies, [its] recruitment techniques, [and its] responses to casual or tentative inquiries.”

Here, Plaintiff argues that applying for a Battalion Chief position would have been futile (since he was allegedly denied the opportunity to serve as a training captain). In support, he submitted evidence that:

[Plaintiff] repeatedly sought the 40-hour assignments that supply the promotional points required to compete for Battalion Chief, and LACOFD repeatedly refused him: Harris denied his effort to obtain an administrative position, Sullivan refused even to accept his application for the Technical Operations position, and the Department declined to select him for training-related positions after his complaints. (SSAF Nos. 39–44, 47, 54.) The Department’s own witness confirmed that without at least 90 days of 40-hour experience, promotion to Battalion Chief was extremely difficult, if not impossible. (SSAF Nos. 103–104, 123–124.) And Chief Deputy Peña and other high-ranking personnel advised Rascon that because he lacked those points, he would never be promoted. (SSAF Nos. 65, 79.)

(Motion, 12: 11-19.)

Given that Plaintiff's evidence supports a reasonable belief of explicit employer discouragement which goes beyond generalized allegations or subjective beliefs, Plaintiff's evidence is sufficient to support a failure to promote claim.

As for the elements of discriminatory motive and adverse action, Plaintiff submitted evidence that:

- Plaintiff was subjected to continuous derogatory references to his Hispanic American ethnicity. Plaintiff was repeatedly subjected to racial comments, including being called "beaner," "wet back," and "Mexican," being told to stop his "beaner macho bullshit," and being told that the country's problem was "the damn color" and that the color needed to be "bleach[ed] out." (SSAF Nos. 1–18.) At Fire Station 45, the conduct continued after Rascon became a Captain. Jameson repeatedly instructed him not to play "Mexican music," and Jameson later called him a "stupid Mexican" and "subhuman." (SSAF Nos. 25–32.)
- Plaintiff testified that Jameson and other Caucasian coworkers repeatedly referred to him as "old man," "grandpa," "senior," and "incompetent due to senility." (SSAF Nos. 34–36.) On one occasion, after Rascon found his equipment disturbed and his radio stations garbled, Kiger attributed the conduct to Rascon being "senior" and having "dementia." (SSAF No. 35.)
- Porter's analysis also found a statistically significant relationship between age groups and promotion in the 2022 data ($p = 0.0023$), while her regression analysis estimated an approximately five-percent decrease in promotion likelihood for each additional year of age. (Porter Decl., ¶¶ 11– 12.)
- Andrea Avila testified that 40-hour experience was "very helpful" to promotion to Battalion Chief and that she did not know of a Battalion Chief promoted from Captain without such experience. She further testified that Department statistical analysis showed that it was extremely difficult, if not impossible, for a Captain without at least 90 days of 40-hour experience to remain competitive for promotion. (SSAF Nos. 103–104, 123–124.)
- Battalion Chief Robert Harris denied Rascon's efforts to obtain an administrative position that would have provided the necessary 40-hour promotional points, and Battalion Chief Jim Sullivan later refused to accept Rascon's application for another Technical Operations position, causing him to lose another opportunity. (SSAF Nos. 40–41.) Younger firefighters with less experience were subsequently promoted ahead of Rascon. (SSAF No. 39.)
- Plaintiff repeatedly complained about racially discriminatory conduct during his employment. He reported racial comments and conduct to supervisors, including complaints concerning Frye, Jameson, and other employees. (SSAF Nos. 7–18, 25–30.)
- After Jameson wrote the public whiteboard message concerning Rascon's Yelp review, Rascon confronted him and advised that he would report the matter to the Battalion Chief. Jameson then followed Rascon and called him a "stupid Mexican." (SSAF Nos. 26–28.) Rascon immediately attempted to report Jameson's conduct to Yanagisawa, Jameson's immediate supervisor. Yanagisawa initially responded, "Don't tell me what to do!" and ultimately came to the station, took notes, and required Rascon and Jameson to shake hands. (SSAF Nos. 28–30.)
- After Jameson returned to work, Rascon contends that Jameson continued calling him and other Hispanic employees "stupid Mexican" and calling Rascon "subhuman," while encouraging Caucasian employees to exclude Rascon. (SSAF Nos. 31–32, 49.)
- The temporal relationship between Rascon's complaints, his subsequent treatment, his performance evaluations, and the denial of 40-hour opportunities further strengthens the inference. Rascon's evidence is that his first negative evaluations in approximately twenty years occurred after his complaints became known, during a period when he was also experiencing significant medical issues and absences. (SSAF Nos. 71–75.) The record further connects those evaluations to the loss of promotional opportunities. (SSAF No. 78.)

Taken together, Plaintiff's evidence supports a reasonable inference that Plaintiff was denied opportunities in the workplace because of his ethnicity and age, and supports inferences of discriminatory intent. Plaintiff's evidence similarly supports a reasonable inference of retaliatory motive and that Plaintiff's protected activity of reporting to supervisors contributed to his adverse treatment.

The same is true of Plaintiff's disability and medical-condition discrimination claims.

Plaintiff submitted evidence that Plaintiff suffered significant work-related injuries, including shoulder and knee injuries, underwent multiple surgeries, and was placed on disability leave. His 2019 shoulder injury ultimately required extensive surgery in January 2022, and a tumor discovered during his recovery required another surgery later that year. His surgeon placed him on disability for approximately one year. (SSAF Nos. 66–70.)

Against that background, Rascon submitted evidence that he received the first negative performance evaluation of his career during his recovery. He later received another negative review while still recovering from his 2022 surgeries. (SSAF Nos. 71, 75.) Plaintiff submitted evidence to show that this was a departure from his historical evaluations. Rascon had previously received "outstanding" or "very good" evaluations, yet his rating was reduced after his medical issues and complaints became known. He also received a "competent" rating while recovering from surgery. (SSAF Nos. 71–75.)

Moreover, Plaintiff submitted evidence to show that the alleged discrimination had consequences beyond the evaluations themselves, including that the negative evaluations contributed to his inability to obtain 40-hour assignments, which were critical to his Appraisal of Promotability and his ability to compete for Battalion Chief. (SSAF Nos. 71–79, 103–104, 123–124.) He was also twice denied training-related 40-hour positions despite the selection of firefighters with less experience and/or seniority. (SSAF Nos. 41–44.)

Taken together, the Court finds that there is a factual dispute over whether Rascon's medical condition affected the employment decisions that ultimately impaired his ability to advance.

In opposition, Defendants argue that even assuming Plaintiff can state prima facie FEHA claims, the County had legitimate, nondiscriminatory reason for an adverse employment action. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 520.) Legitimate reasons in the employment context are reasons that are factually unrelated to prohibited bias, and therefore, if true, would preclude a finding of discrimination. (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 358; see also *Flait v. N. Am. Watch Corp.* (1992) 3 Cal.App.4th 467, 479 [employer need only produce evidence that it had a non-retaliatory reason for its conduct].) If the employer has met its burden by showing a legitimate reason for its conduct, the employee "must [produce] substantial evidence that the employer's stated reasons were untrue or pretextual." (*Martin v. Lockheed Missiles and Space Co.* (1994) 29 Cal.App.4th 1718, 1735.)

To show that it had legitimate, nondiscriminatory reason for an adverse employment action, the County argues:

Quite simply, Plaintiff was not promoted to the position of Battalion Chief because he never took the required steps under the Department's promotional process, including the PRAP, to apply for an open BC position when an examination for BC was opened. The Department has a legitimate business interest in only promoting to Battalion Chief those Fire Captains who have demonstrated through their written exam scores and PRAP that they have the necessary skills, experience, qualifications and training to serve in the BC role. Plaintiff did not complete the required process and there is no evidence that his not being promoted was a pretext to discriminate or retaliate against him. Further, as noted, Plaintiff's claim that he needed a 40-hour per week position to promote to Battalion Chief is belied by the statistical evidence that more than half of the Fire Captains who promoted to Battalion Chief in 2022 had not served in a 40-hour per week position.

(Motion, 15: 19-16:1.)

However, Plaintiff submitted evidence that:

- He had received exemplary performance evaluations and had not been disciplined for his work performance over more than twenty years. (SSAF Nos. 71–75.) Yet after his medical problems, absences, and complaints of discriminatory treatment became known, his evaluations changed.

- Rascon's performance rating was reduced from "outstanding" to "very good," which he identifies as the first downgrade in twenty years, despite observing Caucasian Captains receive "outstanding" ratings from the same supervisor. (SSAF Nos. 71–74.) He subsequently received a "competent" rating while recovering from his surgeries; the evidence identifies this as another negative departure from his prior performance history. (SSAF No. 75.)

- Rascon's evidence is that the evaluations were used in connection with his inability to obtain 40-hour opportunities, which in turn deprived him of promotional points necessary to remain competitive for Battalion Chief. (SSAF Nos. 71–79, 103–104, 123–124.) He was then twice denied training-related 40-hour positions, with less-experienced and/or less-senior firefighters selected instead. (SSAF Nos. 41–44.)

Taken together, the Court agrees that the "jury could reasonably view the evaluations not as isolated personnel judgments, but as part of a chain: Complaints and protected activity ∩ negative evaluations ∩ loss of 40-hour opportunities ∩ loss of promotional points ∩ inability to compete for Battalion Chief." (Opp., 19:22-4.) As such, there is a triable issue of fact as to whether LACOFD's stated reasons were genuine or were instead being used to conceal discriminatory or retaliatory motives. (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th) [evidence that an employer tolerated a performance issue for years but acted against the employee after protected circumstances arose may support a finding of pretext].)

This leaves Defendant's arguments related to Plaintiff's harassment and failure to prevent claims.

Defendant argues that first, as a threshold matter, most of the alleged incidents of harassing conduct occurred outside the limitations period and therefore cannot be considered by the Court. However, otherwise untimely conduct may be considered under the continuing-violation doctrine where the unlawful acts are sufficiently similar in kind, occur with reasonable frequency, and have not become permanent. (*Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 802.) Moreover, the Legislature has directed that "[h]arassment cases are rarely appropriate for disposition on summary judgment." (Gov. Code, § 12923, subd. (e).)

Here, Plaintiff's evidence spans years, multiple stations, multiple perpetrators, and includes repeated racial epithets and conduct by both coworkers and supervisors. Given that it does not rely on an isolated incident, but on decades of evidence of racial conduct by multiple perpetrators, including supervisors, that continued after his complaints, the court finds the continuing violation doctrine to be applicable.

Plaintiff's evidence of repeated statements concerning his ethnicity, racial epithets, and ridicule and exclusion present triable issues as to whether the workplace became sufficiently hostile or abusive. There are also triable issues as to Defendant's notice and response as Plaintiff submitted evidence which could show he repeatedly reported discriminatory conduct to supervisors, yet supervisors frequently did nothing, or took measures that did not stop the conduct. For example, Rascon complained to Mayfield about Jameson's "Mexican music" comments, but Mayfield did nothing. (SSAF No. 25.)

The same is true of Plaintiff's age-based harassment claims. Plaintiff submitted evidence that coworkers repeatedly referred to Rascon as "old man," "grandpa," and "senior," and stated that he was "incompetent due to senility." (SSAF Nos. 34–36.) On another occasion, Kiger attributed the disturbance of Rascon's equipment and radio stations to Rascon being "senior" and having "dementia." (SSAF No. 35.) Rascon's evidence further indicates that younger firefighters with less experience were promoted ahead of him. (SSAF Nos. 36, 39.)

As such, Plaintiff's evidence does not rely on an isolated incident but repeated age-based ridicule, the participation of multiple younger coworkers, the connection between age-related treatment and the distribution of career-enhancing assignments, and the resulting effect on his employment.

Whether that conduct was sufficiently severe or pervasive is a classic fact-intensive inquiry, and it cannot be resolved against Rascon as a matter of law. (Gov. Code, § 12923, subd. (e); Galvan v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 563–565 [reversing summary judgment on age- and national origin-based harassment claim].)

Given that the Court finds triable issues as to each of Plaintiff's underlying claims, the Court necessarily also finds triable issues as to the failure to prevent claims.

Based on the foregoing, Defendants' motion for summary judgment is denied. Defendants' motion for summary adjudication is similarly denied.

It is so ordered.

Dated: September , 2026

Hon. Jon R. Takasugi

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE

RULING

CHRISTOPHER RASCON

vs.

THE COUNTY OF LOS ANGELES, et al.

Case No.: 22STCV06583

Hearing Date: September 8, 2026

Defendants'

motion to quash Plaintiff's deposition subpoena for production of business

records of the County of Los Angeles' County Equity Oversight Panel (CEOP) is

DENIED.

On 2/23/2022,

Plaintiff Christopher Rascon (Plaintiff) filed suit against the County of Los

Angeles and Todd Jameson (collectively, Defendants), alleging: (1) racial

discrimination; (2) racial harassment; (3) age discrimination; (4) age

harassment; (5) retaliation; (6) failure to prevent.

On

8/21/2026, Defendants moved to quash Plaintiff's deposition subpoena for

production of business records of the County of Los Angeles' County Equity

Oversight Panel (CEOP).

Discussion

Defendants

argue that Plaintiff's subpoena is an improper attempt to obtain discovery

directly from a represented party—the County of Los Angeles—through its

non-party subdivision or instrumentality, thereby circumventing the formal

discovery processes applicable to parties represented by counsel.

The

subpoena seeks County records regarding internal County Policy of Equity (CPOE)

complaint investigations. Defendants contend that these confidential records

are protected by the official information privilege under California Evidence

Code section 1040.

The

moving party asserting a privilege or privacy right bears the initial burden of

establishing a prima facie case. Once a prima facie showing is made, the burden

shifts to the party seeking discovery to demonstrate that the information is

directly relevant, essential to a fair resolution of the lawsuit, and that the

requesting party's interest outweighs the privilege holder's or affected

person's confidentiality and privacy interests.

Here,

the subpoena seeks "any and all documents" concerning two internal CPOE

complaint investigations specifically involving Plaintiff, including

designation letters, investigation materials, supporting documents, and

interviews. As such, the documents do request records which contain private

information. However, the Court finds that information is directly relevant and

essential to the case as the records contain the investigative files relating

to two internal CPOE complaint investigations specifically involving Plaintiff,
including designation letters, investigation materials, supporting documents,
and interviews.

As such,

Plaintiff's interest in the documents outweighs the privacy interests at stake.

Based

on the foregoing, Defendants' motion to quash Plaintiff's deposition subpoena

for production of business records of the County of Los Angeles' County Equity

Oversight Panel (CEOP) is denied.

It is so ordered.

Dated: September

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

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tentative as the final order. If the department

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